

SETTLEMENT AGREEMENT AND GENERAL RELEASE

This Settlement Agreement and General Release (the "Agreement") is entered into as of September 4, 2025 by Eduardo Aparicio ("Releasor") and Chantel Ellerbee and its insurer, Kemper Independence (together, the "Released Parties"), regarding claim number 36-557579-A.

1. Settlement Payment

The Released Parties shall pay the total sum of \$28,200.00 (the "Settlement Payment") by check payable to "Alvarado & Sung LLP Client Trust Account" within thirty (30) days after receipt of this signed Agreement and a completed IRS Form W-9.

2. Release of All Claims

In exchange for the Settlement Payment, Releasor gives up every claim, whether presently known or unknown, that arises from the incident described above.

3. Waiver of Civil Code Section 1542

Releasor expressly waives the protection of California Civil Code section 1542, which provides: "A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."

4. Liens and Reimbursement Claims

Releasor represents that 3 lien(s) totaling \$13,119.39 have been asserted against the recovery. Releasor, through counsel, shall satisfy all such liens from the Settlement Payment and shall indemnify the Released Parties against them. No statutory lien asserted.

5. Confidentiality

The parties agree to keep the settlement amount confidential, subject to disclosures required by law or to satisfy liens.

6. No Admission of Liability

This Agreement is a compromise of disputed claims and is not an admission of liability by any party.

RELEASOR: _____ Eduardo Aparicio APPROVED AS TO FORM:
_____ Anahit Petrosyan, Alvarado & Sung LLP